

SENATE BILL 2465

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 37
and Title 39, relative to criminal justice.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-190, is amended by deleting subdivision (a)(2)(G) and substituting:

(G) A threat of mass violence, as defined in § 39-16-517 or § 39-13-813; or

SECTION 2. Tennessee Code Annotated, Section 39-17-1307, is amended by deleting subdivision (j)(1)(G) and substituting:

(G) A threat of mass violence, as defined in § 39-16-517 or § 39-13-813; or

SECTION 3. Tennessee Code Annotated, Section 39-17-1316, is amended by deleting subdivision (a)(1)(A)(v)(g) and substituting:

(g) A threat of mass violence, as defined in § 39-16-517 or § 39-13-813; or

SECTION 4. Tennessee Code Annotated, Section 39-17-1351, is amended by deleting subdivision (c)(19)(G) and substituting:

(G) A threat of mass violence, as defined in § 39-16-517 or § 39-13-813; or

SECTION 5. Tennessee Code Annotated, Section 39-17-1352, is amended by deleting subdivision (a)(11)(G) and substituting:

(G) A threat of mass violence, as defined in § 39-16-517 or § 39-13-813; or

SECTION 6. Tennessee Code Annotated, Section 39-17-1316(a)(1)(A), is amended by adding the following as a new subdivision:

(vi) Are ineligible to possess a firearm pursuant to any court order or under any law of this state.

SECTION 7. Tennessee Code Annotated, Section 39-17-1003, is amended by deleting subsection (d) and substituting:

(d) A violation of this section is a Class C felony; however, if the number of individual images, materials, or combination of images and materials, that are possessed is more than fifty (50), then the offense is a Class B felony. If the number of images, materials, or combination of images and materials, exceeds one hundred (100), then the offense is a Class A felony.

SECTION 8. Tennessee Code Annotated, Section 39-17-1004, is amended by deleting subdivision (a)(4) and substituting:

(4) A violation of this section is a Class B felony; however, if the number of individual images, materials, or combination of images and materials that are promoted, sold, distributed, transported, purchased, exchanged, or possessed, with intent to promote, sell, distribute, transport, purchase, or exchange, is more than twenty-five (25), then the offense is a Class A felony.

SECTION 9. Tennessee Code Annotated, Section 39-17-1004, is amended by deleting subdivision (b)(4) and substituting:

(4) A violation of this section is a Class B felony; however, if the number of individual images, materials, or combination of images and materials, that are promoted, sold, distributed, transported, purchased, exchanged, or possessed, with intent to promote, sell, distribute, transport, purchase, or exchange, is more than twenty-five (25), then the offense is a Class A felony.

SECTION 10. Tennessee Code Annotated, Section 39-17-1005(d), is amended by deleting "Class B felony" and substituting "Class A felony".

SECTION 11. This act takes effect July 1, 2026, the public welfare requiring it.